

Court No. - 40

Case :- WRIT - C No. - 34304 of 2023

Petitioner :- Meena Devi And 2 Others

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Shivangi Nanda

Counsel for Respondent :- Barmeshwar Nath Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Ms. Shivangi Nanda, learned counsel for the petitioners. Sri Baleshwar Chaturvedi has accepted notice on behalf of the respondent no. 1/Electricity Department.

2. In view of the order, which is proposed to be passed today, notice need not go to the private respondent no. 2.

3. The present writ petition has been preferred for a mandamus directing the respondent no. 1 to provide the electricity connection to the petitioners on her online application no. 1013673377 dated 19.7.2023 for the shop no. 8 Radha Krishna Shrangar situated at Krishna Janam Bhumi, Mathura, U.P.

4. Learned counsel for petitioner submits that there is dispute between the landlord and the tenant with regard to the shop in question. The petitioners being tenant in the said shop, had already instituted a suit for permanent injunction against the landlord and meanwhile the landlord just to oust the petitioners from the shop in question, had disconnected the electricity connection. Learned counsel for the petitioners submits that even though fresh application for electricity connection is already moved but till date the respondent no. 1 has not processed the said application and accordingly request has been made for a direction commanding the respondent no. 1 to process the same expeditiously.

5. We have occasion to peruse the record in question as well as the Electricity Supply Code, 2005. Suffice to indicate The Electricity Supply Code, 2005 is a self-contained Code and the full-fledged mechanism provided therein to redress the grievance of the petitioner. We are also of the considered opinion that the petitioners have every right to get the new electricity connection in view of the provisions contained under Clause 4.4 (a) of the Electricity Supply Code, 2005, which reads as under.

"Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law /statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3) "

6. In view of the above, on consent and without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, this writ petition is **disposed of** leaving it open to the petitioner to move an appropriate application in the light of aforesaid provision within a week's time from today. In case any such application is being preferred, we hope and trust that the same would be looked into, examined and remedied strictly in accordance with law as expeditiously as possible and preferably within a period of six weeks from the date of production of a certified copy of the order.

Order Date :- 30.10.2023

A.K.Srivastava